

Ptff/Pet: Barr, Howard Todd
Def/Res: County of Calaveras;
County of Calaveras

Atty: Shepardson, John Arthur
Atty: Angelo, Kilday & Kilduff;
Sanders, Serena Mercedes

TENTATIVE RULING: Defendant County of Calaveras moves, pursuant to Code of Civil Procedure sections 2019.020 (b), 2019.030 (1), and 2025.420 (b), for a protective order placing conditions and limitations on discovery conducted by Plaintiff. Specifically, "Defendant requests the Court issue a protective order limiting questioning to a maximum of four hours, directing Plaintiff's counsel to prioritize areas of inquiry needed to oppose [Defendant's pending Motion for Summary Judgment], and limiting the questioning to the valid topics of inquiry not previously covered in the first day of PMQ deposition. (See Motion at 2:7-11.)

Defendant presents evidence that, in response to Plaintiff's deposition notice of Defendant's person most qualified (PMQ), Defendant produced Judy Hawkins for seven hours of questioning on April 22, 2021. (See Declaration of Serena Warner at ¶¶ 11 and 12, and Exhs. C and E.) Defendant asserts that Plaintiff seeks to depose Ms. Hawkins, as Defendants' PMQ, further, an assertion confirmed by plaintiff's companion motion to compel further PMQ testimony.

Defendant indicates it will produce Ms. Hawkin for this purpose. (Support Memo at 8:8-8.) However, Defendant first asks the Court to limit the second session of Ms. Hawkins' PMQ deposition to four hours. Based on the evidence produced by Defendant, the Court finds that limiting the PMQ deposition of Ms. Hawkins to eleven total hours of questioning is necessary to protect her from undue burden in light of the needs of the case, the amount in controversy, the number and complexity of matters at issue through the pleadings on which she has been asked to testify, and the importance of those issues. (See Code Civ. Proc., § 2019.030 (a)(2 and CCP § 2025.420 (b)(5).)

Plaintiff appears to concede that four additional hours are sufficient and/or that so limiting the deposition is appropriate by failing, in his opposition papers, to address Defendant's request for such limit.

Defendant next asks the Court to direct Plaintiff's counsel, in the conduct of the reconvened PMQ deposition, to prioritize those areas of inquiry that Plaintiff needs to oppose Defendant's pending Motion for Summary Judgment and to limit the questioning to valid topics of inquiry not previously covered in the first session of the PMQ deposition. The Court declines to so instruct or limit counsel's questioning. Plaintiff has an additional four hours to depose Defendant's PMQ and counsel is free to prioritize questioning during those hours in whatever way he feels best serves his case. His failure to oppose the requested limitation suggests that this additional time is adequate to permit questioning on all reasonably necessary matters, whether for purposes of opposing an MSJ or in prosecuting the case. The Court finds no grounds for either (1) dictating to Plaintiff his priorities in this regard, or (2) prohibiting Plaintiff from using his allotted time to follow up on topics previously covered.

The Court notes Defendant's concern that Plaintiff will seek another continuation of the hearing on Defendant's pending motion for summary judgment. (See, e.g., Support Memo at 2:14-15.) No such request is currently before the Court. Defendant's concern about the possibility that Plaintiff will make such request in the future is insufficient grounds for the Court to dictate the details of Plaintiff's examination of Defendant's PMQ.

Based on the foregoing, the motion is GRANTED IN PART. The Court orders that the deposition of Judy Hawkins, in her capacity as Defendant's PMQ, shall be limited to a total of eleven hours. The motion is denied in all other respects.

The clerk shall provide notice of this ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

9:00 AM	18CV42976	Motion to Compel Def's person most qualified to answer PMQ Topic Questions	01/05/2018	07/23/2021 08/11/2021	Motion-Summary Jgmt/Adjudication; Case Management Conference
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TENTATIVE RULING: The notice of motion fails to state exactly what relief Plaintiff seeks through the present motion. This is no mere procedural oversight. The Court is genuinely confused regarding the nature of the present motion.

The notice of motion must state the nature of the relief sought and the grounds upon which that relief is sought. (See Code Civ. Proc., § 1010 [“the notice of a motion, other than for a new trial, must state...the grounds upon which it will be made”]; see also Rules of Court, Rule 3.1110 [“[a] notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order”]; see also *People v. American Sur. Ins. Co.* (1999) 75 Cal.App.4th 719, 726.)

The notice of motion provides that Plaintiff “will bring a motion compel [sic] Defendant County of Calaveras’ Person Most Qualified Witness to answer PMQ topic area questions, and seek reimbursement sanctions for the partial cost of this motion.” (Motion at 1:24-27.) Plaintiff contends that the motion “is brought pursuant to Code of Civil Procedure sections 2016, 2020.310, 2023.010, 2023.030, 2025.010, 2025.230, and 2025.480. (See id. at 1:28-2:1.)

The memorandum section of Plaintiff’s filing begins with the following: “Question Presented [¶] Can Defendant produce a PMQ witness and refuse to answer PMQ-related questions merely because they previously testified on the topic earlier in the litigation as a percipient lay witness?” (Motion at 2:14-16.) Plaintiff then quotes, in its entirety, Code of Civil Procedure section 2025.610, which is not cited in the Notice of Motion section of the filing. (See id. at 2:19-3:6.) The memorandum section ends with, “Plaintiff respectfully requests the Court order Defendant’s PMQ to answer deposition questions on the PMQ topic areas identified in the Separate Statement and order reimbursement to Plaintiff’s counsel in the modest sum of \$2,400 for being forced by Defendant to bring this motion.” (Support Memo at 9:14-17.)

Adding to the Court’s confusion, Defendant contends that through the motion, “Plaintiff...challenges 28 of Defendant County of Calaveras’ objections to the Notice of Deposition for a Person Most Qualified on 69 areas of inquiry.” (Opposition at 1:22-24.) Plaintiff’s Separate Statement is organized by PMQ Topic Number, providing some ephemeral support for that conclusion; however, the Court cannot find in Plaintiff’s moving papers any support for this interpretation of the nature of Plaintiff’s motion.

In fact, Defendant’s contention is undermined by several portions of Plaintiff’s Motion. First, the contention is undermined by the “Question Presented” section quoted herein above. Based on that “Question Presented” statement, the subject of Plaintiff’s motion is not Defendant’s objections to the Notice of Deposition, and not Defendant’s failure or refusal to name a Person Most Qualified (PMQ) regarding certain topics but, instead, the refusal by Defendant to allow the PMQ to answer questions. (See Support Memo at 2:14-16.) That this is the exclusive subject matter of the motion is reinforced by Plaintiff’s “Summary Argument” section wherein Plaintiff urges that “Defendant has improperly refused to allow the PMQ to answer topic area questions on the basis that they previously testified in the area as a lay witness.” (Motion at 3:17-18.) This argument appears to refer to events that took place at the deposition of Judy Hawkins, produced in her capacity as PMQ, on April 22, 2021. (See Motion at 3:24-25; Exhibit 3, Declaration of John A. Shepardson at ¶ 9.) Finally, this interpretation is further supported by the Statement of Facts section of the Motion. (See id. at 3:24-4:13.)

Based on the foregoing, the Court reasonably concludes that the present motion is one brought pursuant to Code of Civil Procedure section 2025.480 for a motion to compel Defendant’s PMQ Judy Hawkins to answer questions at her continued deposition relating to the topics identified in the PMQ deposition notice.

Plaintiff provides the Court with a copy of the entire 206-page transcript of Ms. Hawkins’ April 22, 2021 deposition. The transcript reflects that on occasion counsel instructed Ms. Hawkins to not answer questions regarding her personal knowledge of certain topics on the grounds that she had previously testified thereon as a percipient witness. (See, e.g. Shepardson Decl. at Exh. 3, 22:23-23:15.) Here, Defendant clarifies that “Defendant raised objections prior to the deposition and during deposition that Plaintiff may not properly re-open [Ms. Hawkins’] percipient witness deposition once Hawkins (as PMQ) confirmed the absence of information available to County beyond her own percipient knowledge.” (Opposition at 5:17-21.) The transcript of Ms. Hawkins’ deposition supports the conclusion that, as PMQ, Ms. Hawkins repeatedly testified that her personal knowledge was the only information the County had as to certain topics. (See, e.g., Shepardson Decl. at Exh. 3, 21:21-22:6, 23:5-12; see also Opposition at 5:24-6:23 and

evidence cited therein.) But, when asked at the April 22, 2021, PMQ deposition to testify as to this personal knowledge, Ms. Hawkins was instructed not to answer. (See, e.g., Shepardson Decl. at Exh. 3, 22:16-23:3.)

“It is generally improper...for counsel to instruct a witness not to answer on grounds other than privilege, privacy, trade secrets, or other matters statutorily or constitutionally exempt from discovery.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2020) § 8:734.2, p. 8E-122 citing *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1013-15.) Defendant presents no authority suggesting any statutory or constitutional grounds for instructing Ms. Hawkins to not answer questions regarding her personal knowledge. Neither does Defendant present authority otherwise suggesting that the instruction not to answer was proper. Although it seems quite likely that Ms. Hawkins’ PMQ testimony concerning her personal knowledge will largely (if not wholly) mirror her earlier percipient testimony, she is produced in a separate role as PMQ and plaintiff is entitled to have her provide her percipient testimony in this role, especially upon confirmation that her percipient knowledge is the County’s only available information.

Based on the foregoing, Plaintiff’s motion, as reasonably construed by the Court is GRANTED. Defendant is directed to produce Ms. Hawkins as PMQ and allow her to testify regarding her personal knowledge on the topics identified in the deposition notice.

Plaintiff’s request for sanctions is DENIED. The Court finds that in light of the nature of Plaintiff’s questioning of Ms. Hawkins at the April 22, 2021, and the understandable confusion regarding the nature and scope of Plaintiff’s arguments through meet and confer and the present motion, Defendant acted with substantial enough justification in opposing the motion that sanctions are not warranted. (See Code Civ. Proc., § 2025.480 (j).)

To the extent Plaintiff seeks other relief through the motion, it is denied in all such respects based on lack of clarity.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

¹For ease of reference the term “Motion” as used herein refers to the document, filed on May 28, 2021, by Plaintiff in this action, and titled “PLAINTIFF HOWARD TODD BARR’S NOTICE OF MOTION TO COMPEL DEFENDANT’S [sic] PERSON MOST QUALIFIED TO ANSWER PMQ TOPIC QUESTIONS; AND SUPPORTING AND [sic] MEMORANDUM ; RESPECTFULLY REQUEST FROM DEFENDANT COUNTY OF CALAVERAS REIMBURSEMENT FOR PARTIAL COST OF MOTION OF \$2,400.”